

113/51

To have and to hold the above described lands and interests, together with all and singular the rights and appurtenances thereto in anywise belonging unto the said S.H. Bergman, his heirs and assigns forever, and I do hereby bind myself, my heirs, executors and administrators, to warrant and defend the title to said premises unto the said S.H. Bergman, his heirs and assigns, against all persons whomsoever lawfully claiming or to claim the same or any part thereof by, through and under, me, except as to the adverse claims that might be asserted by reason of the limitation laws of the State of Texas, and taxes.

Executed this 25th day of January 1938.

Clark Davis

THE STATE OF TEXAS |

COUNTY OF POLK | BEFORE ME, the undersigned authority, on this day personally appeared Clark Davis, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purposes and consideration therein expressed.

Given under my hand and seal of office, this 25th day of January 1938.

(Seal)

Faye Bandy
Notary Public in and for Polk County,
Texas

Filed for record in my office on the 28th day of Jan., 1938, at 10:45 o'clock A.M. and was this day duly recorded at 10 o'clock A.M., in Vol. 113, pages 56, et seq., Deed Records of said County.

Witness my hand and official seal at office in Livingston this 4th day of Feb., 1938.

C.B. Marsh
Clerk County Court Polk County, Texas

(Seal)

BY Mr. C.N. Mathews Deputy

Willie Reinhardt et al vs. Fredrica Splittstösser

Certified Copy of the Division
by the Commissioner

WILLIE REINHARDT ET AL

VS. NO. 36384

IN THE DISTRICT COURT, POLK COUNTY, TEXAS

FREDRICA SPLITSTOSSER ET AL

TO THE SAID HONORABLE COURT:

In obedience to a decree, and a writ, of partition issued from said Court in the above entitled and numbered cause, requiring us to partition, in accordance with said decree, and the law, among the joint owners, Willie Reinhardt, Julius Reinhardt, Charlie Reinhardt and Fredrica Splittstösser, the following described land situated in Polk County, Texas.

FIRST TRACT, A part of the William P. Valentine survey and described thus;

Beginning at the N.W. corner of the J.H. Parsons survey, stake chestnut oak brs N 7 W 6 vrs holly 10 in X brs S 89 E 9 vrs;

Thence east with said Parsons line at 79 vrs McMannus Creek; 107 vrs corner stake white oak S 50 W 5.2 vrs, white oak N 81 E 7 vrs;

Thence N 196 vrs to corner said Valentine survey, stake Magnolia brs 38 vrs ash brs N 10 W vrs.

Thence west 120 vrs cross said creek at 950 vrs stake for corner pine brs S 61 W 4 vrs pine brs S 55 E 9 vrs;

Thence south with the west line of said Valentine survey, at 984 vrs stake 100 feet from center of the M.K. & T. Ry for corner;

Thence with said M.K. & T. right of way, being 100 feet from the center of its

113/58

railroad track to the east line of said Valentine survey which is also the west line of the J.H. Parsons survey; stake for corner 100 feet from the center of the said M.K. & T. Ry Track;

Thence north with said Parsons line 472 vrs to the place of beginning, containing one hundred and twenty one (121) acres of land.

SECOND TRACT, A part of the J.H. Parsons survey and described thus; Beginning at the N.W. corner of said J.H. Parsons survey stake holly 10 in mkd X brs S 69 E 9 vrs a white oak 24 in brs N 7" 6.4 vrs.

Thence east 79 vrs to center of McMannus creek, corner in said creek;

Thence up said creek with its meanderings to a stake for corner 50 feet from the center of the M.K. & T. Ry track;

Thence S 81 W 50 feet from center of said railroad track to the west line of said Parsons survey, which is also east line of the Valentine survey, stake for corner 50 feet from the center of said railroad tract;

Thence north with the west line of said Parsons survey, 472 vrs to the place of beginning, containing sixteen (16) acres of land.

We have this day with the assistance of J.T. Manry, Surveyor to execute said writ of partition as therein required and as required by law, and having found, upon survey that said tract of land is in the shape of a triangle, with the dimensions and frontage shown on the annexed plat of survey and field notes which are incorporated in this report, and having found from the evidence before us that said tract could be partitioned in four convenient parcels, we caused the same to be so surveyed, and each of said four parcels we designated and do now designate a share" and each is so designated on the accompanying Plat;

And having found that share Number One, (1) contains the following land.

Beginning in the west B line said Valentine survey 44 vrs north from the S.W. corner same.

Thence north with said Valentine west B line 340 vrs to stake for corner sweet gum 10 in 55 E 19½ vrs;

Thence N 75 E at 859 vrs cross creek east B line said Valentine and west B line Parsons 969 vrs stake for corner pin oak 6 X 5 W 3½.

Thence south 196 vrs to the old M.K. & T. Ry stake 50 feet from center of tract hackberry 10 in X north 8 vrs;

Thence with and paralleled with said R.R. right of way line 110 vrs to said Parsons west B line and east line Valentine.

Thence north 50 feet stake in north line said right of way line;

Thence with said right of way fence line and parallel with said R.R. to place of beginning 44 acres of land, 40½ acres Valentine 3½ acres Parsons;

And we find Share No. (2) to be as follows;

Beginning at the N.W. corner of a 44 acre tract made for Mrs. Fredrica Splittstosser stake for corner sweet gum 10 in N 55 E 19½ vrs;

Thence N 75 E with north B line same 306 vrs stake in field for corner;

Thence north 390 vrs to stake for corner in south B line Willie Reinhardt tract sweet gum 5 X N 86 W 4 vrs;

Thence with said Willie Reinhardt line N 84 W 209 vrs stake for corner post oak 12 X north 3.8 vrs;

Thence south 114 vrs stake for corner mulberry 20 X N 44 W 3 vrs;

Thence west 97 vrs to the west B line said Valentine survey stake for corner post oak 4 X S 69 W 3 vrs;

Thence south 387 vrs to place of beginning. 20 acres Valentine.

And we find Shares No. three (3) to be as follows;

Beginning at the N.E. corner of a 20 acre tract made for Charlie Reinhardt stake sweet gum 5 X S 86 W 4 vrs;

Thence S 84 E with public road 710 vrs to center of McMannus creek at the bridge on said Creek;

Thence up said creek with its meanderings to stake for corner 50 feet from center of M.K. & T Ry.

Thence with said R.R. right of way line S 81 W to the S.E. corner of a 44 acre tract made for Mrs. Fredrica Splittstosser, hackberry 10 X north 8 vrs;

Thence north with said 44 acre tract 196 vrs to the N.E. corner said 44 acre tract stake for corner pin oak 6 X N 5 W 3½ vrs;

Thence S 75 W with north B line said 44 acre tract 663 vrs to the S.E. corner Chas. H. Reinhardt tract stake for corner in field;

Thence north with east B line said tract 390 vrs to place of beginning, 42½ acres, 11½ acres Parsons 31 acres Valentine survey.

And we find Share No. four (4) to be as follows;

Beginning in the center of McMannus creek at the N.E. corner Julius Reinhardt at bridge on said creek;

Thence with public road N 84 W with north B line said Julius Reinhardt 920 vrs to most N.W. corner Chas H. Reinhardt 20 acre tract stake for corner post oak 12 X north 3.8 vrs.

Thence south 114 vrs to another corner said Chas H. Reinhardt mulberry 20 X N 44 W 3 vrs;

Thence west 97 vrs to the west B line said Valentine survey same being another corner said 20 acre tract post oak 4 X S 68 W 3 vrs corner said Valentine survey stake for corner in old road;

Thence east with north B line said Valentine survey 950 vrs to N.E. corner same; Thence south to McMannus creek;

Thence up said creek with its meanderings to place of beginning 32 acres. 30½ acres Valentine, 1½ acres Parsons;

That all shares described herein are of equal value, we have made a division of each shares, first setting apart as between said parties, first to Mrs. Fredrica Splittstosser, Second. to Chas. H. Reinhardt, Third to Julius Reinhardt, and Fourth, to Willie Reinhardt and we have and do hereby, set aside and allot share Number One (1) to Mrs. Fredrica Splittstosser, and we do hereby set aside and allot share number two (2) to Chas H. Reinhardt, and we do hereby set aside and allot share Number three(3) to Julius Reinhardt. and we do hereby set aside and allot share number four (4) to Willie Reinhardt, which partition we judge to be fair and equitable between said parties and in proportion to the respective interest to which said parties are respectively entitled as determined by such decree. Our services occupied 1. One day, during which time J.T. Manry was employed as Surveyor and Platter, for whom we recommend a fee of \$23.50 dollars.

Witness our hands this the 16th day of June 1937.

E.M. Burchfield

W.L. Wright

113/60

Subscribed and sworn to before me, this the 16th day of June, 1937, to certify which witness my hand and seal of office.

Effie Hill
Notary Public Polk County, Texas

THE STATE OF TEXAS |

COUNTY OF POLK | I, A.L. Reeves Clerk of the Special Ninth District Court Polk County, Texas, do hereby certify that the within and foregoing three pages is a true and correct copy of the Report of the Commissioners appointed to make division, in the Cause of Willie Reinhardt et al vs Fredrica Splittstosser, et al No. 6384, as the same appears on the Civil Minutes of the Special Ninth District Court Polk County, Texas in Vol. M, page 197, 200.

Given under my hand and seal of office in Livingston, Texas, this the 24th day of November A.D. 1937.

(Seal) A.L. Reeves
Clerk of the Special Ninth District Court, Polk County, Texas.

Filed for record in my office on the 28th day of Jan., 1938, at 3 o'clock P.M., and was this day duly recorded at 11:15 o'clock A.M., in Vol. 113, pages 57, et seq., Deed Records of said County.

Witness my hand and official seal at office in Livingston this 4th day of Feb., 1938.

C.B. Marsh
Clerk County Court Polk County, Texas

(Seal) BY Mrs. A. J. Mathews Deputy

1, 186 Maud King, et al To Polk County Motor Company Mineral Deed

STATE OF TEXAS |
COUNTY OF POLK | KNOW ALL MEN BY THESE PRESENTS:

That we, Maud King, a feme sole, and Thomas Chambless and wife, Eva Chambless, of the County of Polk, State of Texas, for and in consideration of the sum of Ten & No/100 (\$10.00) dollars and other good, valid and valuable considerations, the receipt of which is hereby acknowledged, to us in hand paid by Polk County Motor Company, have granted sold and conveyed, and by these presents do grant, sell and convey unto the said Polk County Motor Company, all the oil, gas and other minerals on, in and under the hereinafter described land, save and except that portion specifically herein excepted from this conveyance and retained by grantors, to-wit;

All that certain land situated in Polk County, Texas, and thus described, being a part of the John R. Johnson survey about nine miles north 80 east from Livingston, Texas, being a part of one hundred acres out of said survey conveyed to Michel Ryan by John R. Johnson and thus described;

Beginning at a stake on the S.E. boundary line of said John R. Johnson survey, a sweet gum marked X brs N 35 W 3 vrs;

Thence S 45 E 140 vrs to a stake a sweet gum marked X a white oak marked X both trees bear south ten vrs;

Thence N 45 E 490 vrs to S.E. corner of same;

Thence N 45 W with N.E. line of same 140 vrs to a stake a pine marked X brs N 35 E 4 vrs;

Thence S 45 W to place of beginning, containing 12 acres.

This being a part of the tract of land described by deed dated February 17, 1913.